

25STCV37750 25STCV37750

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Case Number: 25STCV37750 Hearing Date: June 23, 2026 Dept: 407

Tentative Ruling

Judge Brock T. Hammond, Department 407

HEARING DATE: June

23, 2026 TRIAL

DATE: Not set

CASE: Mario Rodriguez v. Tyler Perry, et al.

CASE NO.: 25STCV37750

DEFENDANT

LIONS GATE FILMS INC.'S DEMURRER

TO

FIRST AMENDED COMPLAINT

MOVING

PARTY: Defendant Lions Gate Films Inc.

RESPONDING

PARTY: Plaintiff Mario Rodriguez

Plaintiff

Mario Rodriguez ("Rodriguez" or "Plaintiff") alleges that Tyler Perry ("Perry"), a film director and producer, began "grooming" Rodriguez by casting Rodriguez in the film production, Boo! A Madea Halloween. This film, and others produced by Perry, were distributed by Lions Gate Films, Inc. ("Lionsgate"). Thereafter, Perry dangled future roles as a pretext to invite Rodriguez to Perry's private residence where Perry sexually assaulted Rodriguez.

I. BACKGROUND

On December

6, 2025, Plaintiff commenced this action against Defendants, Perry and Lionsgate.

On April 21, 2026, Plaintiff filed the operative First

Amended Complaint ("FAC") against Defendants.

As relevant here, Plaintiff asserts causes of action for negligence (4th

COA) and negligent retention, supervision, and failure to act (5th

COA) against Lions Gate.

On May 26,

2026, Lionsgate filed this demurrer to the fourth, and fifth causes of action.

On June 9,

2026, Plaintiff filed an opposition.

At the time

of this writing, no reply had been filed.

II. JUDICIAL

NOTICE

Lionsgate requests judicial notice of three court documents

filed in other cases and press release. The

request is GRANTED.

III. LEGAL STANDARD

A demurrer for sufficiency tests whether the complaint

states a cause of action.¿ (Hahn v. Mirda (2007) 147 Cal.App.4th 740,

747.)¿ When considering demurrers, courts read the allegations liberally and in

context, accepting the alleged facts as true.¿ (Nolte v. Cedars-Sinai

Medical Center (2015) 236 Cal.App.4th 1401, 1406.)¿ "Because a demurrer

challenges defects on the face of the complaint, it can only refer to matters

outside the pleading that are subject to judicial notice."¿ (Arce ex rel.

Arce v. Kaiser Found. Health Plan, Inc. (2010) 181 Cal.App.4th 471, 556.)¿

IV. DISCUSSION

A. Negligent Hiring, Supervision, and Retention

(5th Cause of Action)

The FAC

alleges that Perry functioned in substance and in legal effect, as Lionsgate's

employee, joint employee, or agent. (FAC,

¶ 163.) The FAC further alleges that Lionsgate

knew or should have known of male-on-male sexual harassment claims against

Perry and his production entities and breached its duty in hiring, supervising,

or retaining Perry engaging Perry in various productions without conducting a

reasonable investigation in Perry's fitness, failing to supervise Perry's

conduct toward aspiring actors and crew on Lionsgate-backed productions. (FAC, ¶¶ 165-167.)

Lionsgate

argues the fifth cause of action fails because the FAC does not allege that (i)

Lionsgate had actual or constructive knowledge of Perry's purported propensity

and (ii) Lionsgate employed Perry. The

court finds the first argument is meritorious.

The elements of negligent hiring,

supervision, or retention claim are: (1) the defendant hired the employee; (2)

the employee was/became unfit to perform the work for which they were hired;

(3) the employer knew or should have known that the employee was/became unfit

and that they created a particular risk to others; (4) the employee's unfitness

harmed the plaintiff; and (5) the employer's negligence in hiring or retaining

the employee was a substantial factor in causing plaintiff's harm.¿ (CACI No.

426.) "Negligence liability will be imposed on an employer if it 'knew or should have known that hiring the employee created a particular risk or hazard and that particular harm materializes.' " (Phillips v. TLC Plumbing, Inc. (2009) 172 Cal.App.4th 1133, 1139.) "To establish negligent supervision, a plaintiff must show that a person in a supervisory position over the actor had prior knowledge of the actor's propensity to do the bad act." (Z.V. v. Co. of Riverside (2015) 238 Cal.App.4th 889, 902.)

Here, the FAC alleges that Lionsgate employed Perry (FAC, ¶¶ 6, 28-36, 163-164) and that Lionsgate "knew or, in the exercise of reasonable care, should have known of facts creating an unreasonable risk that Perry would engage in sexual misconduct toward aspiring actors and crew on Lionsgate-backed productions" (FAC, ¶ 166). However, the FAC does not contain any facts to show Lionsgate knew or should have known Perry's alleged propensity. To the extent the claim is based upon the 2015 Federal Action (FAC, ¶ 43), that reliance is misplaced. No sexual harassment claims were asserted against Perry in the 2015 Federal Action.

(Request for Judicial Notice (RJN), Ex. 1.)

The demurrer to the fifth cause of action is SUSTAINED. Leave to amend is GRANTED.

B. Negligence (4th

COA)

The FAC

alleges that Lionsgate owed a duty to protect Plaintiff from Perry's conduct because Lions Gate and Perry maintained a long-standing co-production and distribution relationship which gave rise to a special relationship with Perry and with Perry's foreseeable victims, including Plaintiff. (FAC, ¶¶ 154-161.)

Lionsgate

argues the negligence claim fails because (i) there is no special relationship to establish a duty owed, (ii) the harm alleged was not foreseeable, (iii) the FAC does not establish Lionsgate's purported breach of duty was the proximate cause of Plaintiff's injury, and (iv) workers' compensation exclusivity bars Plaintiff's negligence claim.

The court finds argument (ii) is dispositive. The court begins by laying out the applicable legal principles.

1.

Applicable Legal Principles

"To establish a

cause of action for negligence, the plaintiff must show that the 'defendant had a duty to use due care, that he breached that duty, and that the breach was the proximate or legal cause of the resulting injury.' [Citation.] Recovery for negligence depends as a threshold matter on the existence of a legal duty of care." (Brown,

11 Cal.5th at p. 213.) “The existence of a duty is a question of law for the court.” (Ann M. v. Pacific Plaza Shopping Center, (1993) 6 Cal.4th 666, 674, disapproved on other grounds in Reid v. Google, (2010) 50 Cal.4th 512, 527, fn. 5.)

“In general,

each person has a duty to act with reasonable care under the circumstances.

[Citations.] However, ‘one owes no duty to control the conduct of another, nor

to warn those endangered by such conduct.’ [Citation.] ‘A person who has not

created a peril is not liable in tort merely for failure to take affirmative

action to assist or protect another unless there is some relationship between

them which gives rise to a duty to act.’ ” (Regents of University of

California v. Superior Court, (2018) 4 Cal.5th 607, 619 (Regents); Delgado

v. Trax Bar & Grill, (2005) 36 Cal.4th 224, 235 [“A defendant may owe an

affirmative duty to protect another from the conduct of third parties if he or

she has a ‘special relationship’ with the other person.”].)

Courts apply a

two-step inquiry to determine “whether a defendant has a legal duty to take

action to protect the plaintiff from injuries caused by a third party.” (Brown,

11 Cal.5th at p. 209.) “First, the court must determine whether there exists a

special relationship between the parties or some other set of circumstances

giving rise to an affirmative duty to protect. Second, if so, the court must

consult the factors described in *Rowland* [v. Christian (1968) 69

Cal.2d 108] to determine whether relevant policy considerations counsel

limiting that duty." (Ibid.)

The two-step

inquiry is based on the premise that "even when two parties may be in a special

relationship, the unforeseeability of the kind of harm suffered by the

plaintiff or other policy factors may counsel against establishing an

affirmative duty for one party to protect another." (Brown, *supra*,

11 Cal.5th at p. 219.) "A court might conclude that duty should not be imposed

because, for example, the type of harm the plaintiff suffered was

unforeseeable, or because there was no moral blameworthiness associated with

defendant's conduct, notwithstanding the defendant's special relationship to

the plaintiff. Put differently, even when a special relationship gives rise to

an affirmative duty to protect, a court must still consider whether the policy

considerations set out in *Rowland* warrant a departure from that duty in

the relevant category of cases." (Id. at p. 222.)

The court

skips to the second step. Assuming there

exists a special relationship between Lionsgate and Perry which would give rise

to a duty to protect Plaintiff, as the alleged victim of sexual assault by

Perry, consideration of the allegations and the Rowland factors lead to

limiting that duty.

The Rowland

factors include:“ [T]he foreseeability of harm to the plaintiff, the degree of

certainty that the plaintiff suffered injury, the closeness of the connection

between the defendant's conduct and the injury suffered, the moral blame

attached to the defendant's conduct, the policy of preventing future harm, the

extent of the burden to the defendant and consequences to the community of

imposing a duty to exercise care with resulting liability for breach, and the

availability, cost, and prevalence of insurance for the risk involved.' ” (Ann

M.,²supra, 6 Cal.4th at p. 675, fn. 5, quoting²Rowland v.

Christian,²supra, 69 Cal.2d at p. 113; see²Castaneda v. Olsher²(2007)

41 Cal.4th 1205, 1213²(Castaneda).) “Foreseeability and the extent of

the burden to the defendant are ordinarily the crucial considerations, but in a

given case one or more of the other²Rowland²factors may be determinative

of the duty analysis.” (Castaneda, at p. 1213.)

Here, and as discussed above, the FAC does

not establish Lionsgate knew of Perry's alleged propensity to groom and

sexually assault aspiring male cast members.

Moreover, the alleged conduct occurred off set. (FAC, ¶ 79.) As

the Brown Court stated, “even when two parties may be in a

special relationship, the unforeseeability of the kind of harm suffered by the

plaintiff or other policy factors may counsel against establishing an

affirmative duty for one party to protect the other.” (Id. at p. 219.) “[A] court might conclude that duty should not

be imposed because, for example, the type of harm the plaintiff suffered was

unforeseeable, or because there was no moral blameworthiness associated with

the defendant's conduct, notwithstanding the defendant's special relationship

to the plaintiff. Put differently, even when a special relationship gives rise

to an affirmative duty to protect, a court must still consider whether the

policy considerations set out in Rowland warrant a departure from that duty in the relevant

category of cases.” (Id. at p. 222.) Where, as here, there are no factual allegations of

Lionsgate's knowledge, Lionsgate cannot be held to have breached a duty by,

inter alia, failing to “enforce morality clauses and codes of conduct, withhold

financing and approval and suspend or terminate the relationship that gave

Perry his casting authority and platform.”

(Opp., p. 10:28-11:1 citing FAC ¶¶ 34–35, 156, 163.) Rowland and its progeny counsel a

departure from that duty.

The demurrer to the fourth cause of action is

SUSTAINED. Leave to amend is GRANTED.

V. CONCLUSION

The

demurrers are Sustained. Leave to amend

is Granted.

Plaintiff

is ordered to serve and file the Second Amended Complaint within 15 days.

Defendant to give notice, unless waived.

Dated: June 23, 2026

Brock T. Hammond

Judge of the Superior Court